

MODULE SIX LTD

Data Processing Agreement

Module Six Ltd as processor for the Validate Authority to Work register

This Data Processing Agreement (**this Agreement**) is made between **Module Six Ltd**, registered in England and Wales under company number 17311940, whose registered office is Henge Barn, Pury Hill Business Park, Alderton Road, Towcester, Northamptonshire, NN12 7LS (**Module Six, we, us**), and the customer named in the Order (**the Customer, you**).

It applies where the Customer uses **Validate**, the Authority to Work register, and governs personal data that Module Six processes on the Customer's behalf. It forms part of, and is subject to, the agreement between the parties for the supply of Validate (**the Principal Agreement**).

1. Definitions

UK GDPR means Regulation (EU) 2016/679 as it forms part of the law of England and Wales, Scotland and Northern Ireland by virtue of section 3 of the European Union (Withdrawal) Act 2018, together with the Data Protection Act 2018.

Controller, processor, data subject, personal data, processing, personal data breach and supervisory authority have the meanings given in the UK GDPR.

Customer Personal Data means the personal data described in clause 3, which Module Six processes on the Customer's instructions under this Agreement.

Sub-processor means any processor engaged by Module Six to process Customer Personal Data.

Register means the Customer's Authority to Work records held in Validate.

2. Roles of the parties

For Customer Personal Data, **the Customer is the controller and Module Six is the processor**. The Customer determines the purposes and means of the processing; Module Six processes only on the Customer's documented instructions.

The Customer warrants that it has a lawful basis for the processing it instructs, that it has provided any privacy information required by Articles 13 and 14 to the individuals in its Register, and that its instructions will not put Module Six in breach of the UK GDPR.

Many of the individuals in a Register are workers who hold no Module Six account and have never had a direct relationship with Module Six. Informing them is the Customer's responsibility as controller, and Module Six has no route to do it.

Where Module Six processes personal data as controller in its own right — including account records for the Customer's administrators, billing records, and any use of Calibrate, Educate, Activate or IPP membership — it does so under its own privacy notice and outside this Agreement. Clause 3.4 sets out that boundary.

3. Subject matter, duration, nature and purpose

3.1 Subject matter and duration

The subject matter is the operation of the Validate Authority to Work register for the Customer. Processing continues for the term of the Principal Agreement and for the period after termination described in clause 9.

3.2 Nature and purpose

Recording which workers hold which competencies, when those competencies were issued and when they expire; recording what each worker is authorised to do; storing evidence supplied in support; issuing expiry reminders; and producing reports that let the Customer demonstrate who is cleared to do what.

3.3 Types of personal data and categories of data subject

Categories of data subject: the Customer's workers, contractors and agency staff recorded on the Register, and the Customer's administrators and managers who operate it.

Types of personal data: name; employee reference; work email address; job title and post; manager's name and work email address; cost centre, department and team; competencies held, with issue and expiry dates; authorisations held, with references and expiry; evidence documents supplied by or about the worker, which may include certificates and training records; submission and approval history; and a record of changes made to the Register.

The Customer must not upload special category data as defined in Article 9, or criminal offence data as defined in Article 10, unless the parties have first agreed in writing the additional measures required. Validate is not designed to hold it, and its evidence store applies no additional controls for it.

3.4 What is outside this Agreement

This Agreement covers the fifteen data stores that make up the Register. It does not cover records for which Module Six is the controller: user accounts, competency self-assessments, validation history, continuing professional development records, quotations and billing, or IPP membership. Those are held under Module Six's own privacy notice, on their own lawful bases and their own retention periods, and the Customer cannot instruct their deletion under clause 9.

This boundary is enforced in the platform rather than described in it. The deletion in clause 9 acts on the Register and is prevented by automated test from acting on anything else.

4. Module Six's obligations

Module Six shall process Customer Personal Data only on the Customer's documented instructions, including as to transfers to a third country, unless required to do otherwise by law; in which case Module Six shall inform the Customer of that requirement before processing, unless the law prohibits it.

This Agreement, together with the Principal Agreement and the Customer's use of the platform's features, constitutes the Customer's documented instructions. Any further instruction shall be given in writing to the address in clause 13.

Module Six shall ensure that persons authorised to process Customer Personal Data are subject to an appropriate duty of confidence.

Module Six shall promptly inform the Customer if, in its opinion, an instruction infringes the UK GDPR or other data protection law.

5. Security

Module Six shall implement appropriate technical and organisational measures to ensure a level of security appropriate to the risk, taking account of the state of the art, the costs of implementation and the nature, scope, context and purposes of processing, as required by

Article 32.

Those measures include: encryption of Customer Personal Data in transit using TLS and at rest; access to the Register restricted to authenticated users of the Customer's own organisation, enforced on every request; separation of each customer's Register such that no request can return another customer's data; a recorded log of changes to the Register, retained and available to the Customer; and daily backup of the underlying database.

Module Six reviews these measures periodically and may change them, provided the level of security is not reduced.

6. Sub-processors

The Customer gives Module Six general written authorisation to engage sub-processors, subject to this clause.

Module Six shall impose on each sub-processor, by written contract, data protection obligations no less protective than those in this Agreement, and remains fully liable to the Customer for the performance of each sub-processor's obligations.

The sub-processors engaged at the date of this Agreement are:

- **Cloudflare, Inc.** — hosting, database and object storage. Processes all Customer Personal Data. This is where the Register resides.
- **Clerk, Inc.** — identity and authentication. Processes the email addresses of the Customer's administrators, and of workers where the Customer's use of the platform requires an account or sign-in link to be issued to them.
- **Resend (Plus Five Five, Inc.)** — transactional email. Processes the name and email address of any recipient of an expiry reminder or notification, and the content of that message.

Module Six shall give the Customer at least thirty days' written notice before adding or replacing a sub-processor. The Customer may object on reasonable data protection grounds within that period, in which case the parties shall discuss the objection in good faith; if it cannot be resolved, the Customer may terminate the Principal Agreement in respect of Validate without penalty.

7. International transfers

Customer Personal Data is stored within the United Kingdom and the European Economic Area. Where a sub-processor is established outside the UK, any transfer is made under the UK International Data Transfer Addendum to the EU Standard Contractual Clauses, or another transfer mechanism recognised under Article 46, and Module Six shall provide details on request.

8. Assistance to the Customer

8.1 Data subject rights

Taking into account the nature of the processing, Module Six shall assist the Customer by appropriate technical and organisational measures, insofar as possible, in fulfilling its obligation

to respond to requests to exercise data subject rights.

Where a data subject contacts Module Six directly about their Register record, Module Six shall not respond substantively, and shall direct them to the Customer and inform the Customer without undue delay. The controller answers, and the controller is the Customer.

8.2 Impact assessments and consultation

Module Six shall assist the Customer in complying with Articles 32 to 36, taking into account the nature of processing and the information available to it.

9. Return and deletion

At the Customer's choice, on termination or expiry of the Principal Agreement, Module Six shall **return** the Register to the Customer, **delete** it, or return it and then delete it.

Return is provided as a complete export of the Register in a structured, machine-readable format, comprising every record in every one of the fifteen data stores described in clause 3. Evidence documents are supplied alongside it.

Deletion removes every record of the Register, and every evidence document, from Module Six's systems. It is not reversible.

Unless the Customer instructs otherwise in writing, Module Six shall retain the Register for **ninety days** after termination or expiry, so that the Customer may request its return, and shall delete it at the end of that period. During that period the Register is not available for operational use.

This ninety-day default exists because the alternative is worse. A contract that says the customer decides, with no default, means data is kept indefinitely whenever nobody gives an instruction.

9.1 Copies held by sub-processors

The deletion in this clause acts on Module Six's own systems, which is where the Register resides. Two sub-processors may separately hold limited personal data derived from it, and Module Six does not have a deletion interface to either:

- **Clerk** may hold an account record for a worker to whom an account or sign-in link was issued. Module Six shall instruct Clerk to delete any such account that exists solely because of the Customer's Register. Module Six shall not delete an account that the individual also uses in their own right, because that account is not the Customer's to delete.
- **Resend** holds a record of messages sent, including recipient address and message content, under its own retention period. Module Six shall not send further messages relating to the Register after deletion, and shall provide Resend's current retention period on request.

Module Six shall certify the deletion in writing on request, stating what was deleted, when, and what remained under this clause.

Module Six may retain Customer Personal Data to the extent required by law, and shall in that case retain only what the law requires, for only as long as it requires, and shall continue to protect it under this Agreement.

10. Retention during the term

Module Six applies no retention period of its own to the Register. Records are retained until the Customer deletes them or until this Agreement ends, because how long a competence record should be kept is a decision for the Customer as controller and depends on its own regulatory obligations.

The Customer may specify a retention period in the Order, in which case Module Six shall apply it.

11. Audit and information

Module Six shall make available to the Customer all information necessary to demonstrate compliance with Article 28, and shall allow for and contribute to audits, including inspections, conducted by the Customer or an auditor it mandates.

The Customer shall give at least thirty days' notice of an audit, conduct it during business hours, take reasonable steps to avoid disrupting Module Six's operations, and not conduct more than one audit in any twelve-month period unless required by a supervisory authority or following a personal data breach affecting Customer Personal Data.

Module Six maintains a record of every deletion carried out under clause 9, stating who authorised it, what was removed and when, and shall make that record available to the Customer on request.

12. Personal data breach

Module Six shall notify the Customer without undue delay, and in any event within **seventy-two hours**, after becoming aware of a personal data breach affecting Customer Personal Data.

The notification shall describe, so far as known: the nature of the breach, including the categories and approximate number of data subjects and records concerned; the likely consequences; the measures taken or proposed to address it; and a contact point for further information. Where the information is not all available at once, Module Six shall provide it in phases without undue further delay.

Module Six shall not notify a supervisory authority or any data subject on the Customer's behalf unless the Customer instructs it to, or Module Six is required to by law. Notification under Articles 33 and 34 is the controller's duty.

13. General

In the event of conflict between this Agreement and the Principal Agreement in respect of the processing of Customer Personal Data, this Agreement prevails.

This Agreement is governed by the law of England and Wales, and the courts of England and Wales have exclusive jurisdiction.

Notices under this Agreement shall be given in writing to **data@modulesix.co.uk** for Module Six, and to the contact named in the Order for the Customer.

Nothing in this Agreement limits either party's obligations under the UK GDPR, or excludes liability that cannot lawfully be excluded.

This Agreement was issued under the reference **MS-DPA-001** and subsequently renumbered to **MS-DAT-002**. The renumbering was administrative and made **no change to the terms of this Agreement**. Where the Principal Agreement or any other document refers to MS-DPA-001, that reference is to this Agreement.

14. Signature

Signed for and on behalf of **Module Six Ltd**:

Name _____ Position _____

Signature _____ Date _____

Signed for and on behalf of **the Customer**:

Name _____ Position _____

Signature _____ Date _____